

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----
FREDO JEANCHARLES, JR.,

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER DEVIN DARMALINGUM, and "JOHN
DOES 1-2", PERSONS EMPLOYED BY THE CITY
OF NEW YORK,Defendants.

X

SUMMONS

Index No.: _____

Date Filed: _____

Plaintiff designates

Queens County
as the Place of TrialThe Basis of Venue is
CPLR § 504(3)

X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
May 26, 2017


Stephannie A. Miranda, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff
FREDO JEANCHARLES, JR.
26 Broadway, Suite 2100
New York, New York 10004
(212) 500-3273
File No.: FA-7079

Defendants' Addresses:

CITY OF NEW YORK, Claim No. 2016PI025653, 100 Church Street, New York, NY 10007

DEVIN DARMALINGUM, New York City Police Department, Police Officer (Tax Reg. No. 958471 & Shield No. 20863) 102nd Precinct, 87-34 118th St, Richmond Hill, NY 11418

“JOHN DOES 1-2”, Persons employed by the City of New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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FREDO JEANCHARLES, JR.,	: <u>VERIFIED COMPLAINT</u>
Plaintiff,	: Index No.: _____
- against -	: Date Filed: _____
CITY OF NEW YORK, NEW YORK CITY :	
POLICE OFFICER DEVIN DARMALINGUM, and :	
“JOHN DOES 1-2”, PERSONS EMPLOYED BY :	
THE CITY OF NEW YORK,	:
Defendants.	:
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Plaintiff FREDO JEANCHARLES, JR., by his attorneys, LEBEDIN KOFMAN LLP, complaining of the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER DEVIN DARMALINGUM, Tax Reg. No. 958471 & Shield No. 20863, of the NYPD 102nd Precinct, and “JOHN DOES 1-2”, PERSONS EMPLOYED BY THE CITY OF NEW YORK, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages under the laws of the State of New York, and for compensatory damages, punitive damages and attorney’s fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his statutory and constitutional rights under the First, Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

THE PARTIES

2. At all relevant times, the plaintiff, FREDO JEANCHARLES, JR. (hereinafter “Plaintiff”) was and is a resident of the County of Queens, City, and State of New York.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the “CITY”) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, the New York City Police Department (hereinafter the “NYPD”) was and is an agency of Defendant CITY.

5. At all relevant times, Defendant CITY operated, controlled and managed the NYPD.

6. At all relevant times, Defendant NEW YORK CITY POLICE OFFICER DEVIN DARMALINGUM, Tax Reg. No. 958471 & Shield No. 20863, of the NYPD 102nd Precinct (hereinafter “OFFICER DARMALINGUM”) was an officer, agent and/or employee of Defendant CITY.

7. At all relevant times, Defendant OFFICER DARMALINGUM was acting within the scope of his employment as an officer, agent and/or employee of the NYPD, employed by Defendant CITY.

8. At all relevant times, Defendant OFFICER DARMALINGUM was individually hired, trained, supervised and retained by Defendant CITY, including its agencies, and supervisory officers, agents and/or employees of Defendant CITY.

9. At all relevant times, the names of Defendants “JOHN DOES 1-2” (hereinafter the “JOHN DOE OFFICERS”) are fictitious, and are intended to be individuals engaged in law enforcement, who were involved in the subject incident and resulting harm caused to Plaintiff, whose names are presently unknown to Plaintiff.

10. At all relevant times, Defendants JOHN DOE OFFICERS were acting within the scope of their employment as officers, agents and/or employees of Defendant CITY.

11. At all relevant times, Defendants JOHN DOE OFFICERS were each individually hired, trained, supervised and retained by Defendant CITY, including its agencies, and supervisory officers, agents and/or employees of Defendant CITY.

12. At all relevant times, Defendants were involved in depriving Plaintiff of and violating Plaintiff's rights, and individuals who acted in concert with them to do so, acted toward Plaintiff under color of the statutes, ordinances, customs, policies, procedures, rules and/or usage of the State and City of New York, and within the scope of their employment.

13. Defendants OFFICER DARMALINGUM, and the JOHN DOE OFFICERS are sued herein in both their individual and official capacities.

FACTS

14. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff, and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits; therefore, the complaint has been prepared without the benefit of full discovery.

Timeliness and Notice of Claim

15. Plaintiff filed a Notice of Claim (*see* Exhibit "A" annexed hereto) in accordance with General Municipal Law Sections 50-e and 50-i on or about August 25, 2016. The Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

16. At least thirty-days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

17. A General Municipal Law Section 50-h hearing was held on March 22, 2017.

18. All conditions precedent to maintaining this action have been met.

19. This action is being commenced within the statutory time frame from which the dates of all claims accrued.

20. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

The Arrest and Incident of May 29, 2016

21. On or about May 29, 2016, at or near the intersection of 107th Street and 86th Avenue, Queens County, in the City and State of New York, at approximately 7:16 a.m., Plaintiff was detained and arrested by Defendants for allegedly Operating a Motor Vehicle While Under the Influence of Alcohol or Drugs in violation of New York State Vehicle and Traffic Law §§ 1192(2) and 1192(3) (hereinafter the “Arrest”).

22. During the course of the Arrest, Defendants handcuffed Plaintiff in an unreasonably forceful manner that exceeded any justification for use of force. Defendant did not pose an immediate threat to the defendants or others and did not resist arrest. Defendants positioned and set said handcuffs on Plaintiff so that they were extremely and unnecessarily tight and caused Plaintiff severe pain, distress, and injury.

23. Due to the wrongful and unreasonable manner in which Defendants handcuffed Plaintiff, he suffered significant, severe, painful and permanent physical, emotional and personal injuries.

24. At or near the time and place of the Arrest, and while being held in the custody of Defendants, without necessity or justification, Defendants did exert significant and excessive physical force against Plaintiff, and the threat of physical force in restraining Plaintiff, which caused Plaintiff to suffer physical pain, harm and injuries.

25. Plaintiff sustained multiple physical injuries, including a severe injury to his left arm. Plaintiff is undergoing medical treatment due to the aforesaid injuries until this day.

26. At or near the time and place of the Subject Incident and Arrest, without necessity or justification, Defendants OFFICER DARMALINGUM and the JOHN DOE OFFICERS did intentionally exert improper, significant and excessive physical force against Plaintiff, and/or the threat of physical force in restraining Plaintiff without necessity or justification, which caused Plaintiff to sustain said injuries and losses.

27. At or near the time and place of Subject Incident, employees, officers, agents, and/or contractors of Defendant CITY witnessed the defendant officers exert excessive and unnecessary force against Plaintiff and did not intervene, though they had the realistic opportunity to do so.

28. At all times relevant to this action, Defendants OFFICER DARMALINGUM and the JOHN DOE OFFICERS acted intentionally, willfully, knowingly, with reckless disregard for, and deliberate indifference to Plaintiff's rights.

29. Upon information and belief, Defendants acted negligently, with gross negligence, and in doing so, deprived Plaintiff of his rights.

30. The acts of Defendants prior to and during the course of the Subject Incident and Arrest were the direct result of the failure of Defendant CITY to properly hire, train, supervise, retain, monitor and discipline its officers, agents, employees and contractors.

31. The acts and/or omissions of the respective defendants prior to and during the course of the Subject Incident and Arrest were the direct result of policies, practices and customs, which were developed, implemented, enforced, encouraged, sanctioned or tolerated by Defendant CITY.

32. As a result of the aforesaid acts and/or omissions of the respective defendants, Plaintiff sustained physical, emotional, and personal injuries and losses including, but not limited to, physical injury, pain and suffering, loss of enjoyment of life, emotional distress, mental anguish, trauma, shock, fear, humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses.

33. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

STATE CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR ASSAULT AND BATTERY

34. The allegations set forth in paragraphs “1” through “33” inclusive are incorporated herein as if fully set forth.

35. The Subject Incident constituted an assault of Plaintiff.

36. The Subject Incident constituted a battery of Plaintiff.

37. Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS, acting within the scope of their employment, intended to make or intended to threaten to make offensive bodily contact with Plaintiff.

38. Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS knew, or should have known, that the offensive bodily contact or threat of offensive bodily contact would constitute an assault of Plaintiff.

39. Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS knew, or should have known, that the offensive bodily contact would constitute a battery of Plaintiff.

40. Plaintiff was aware of the offensive bodily contact and Plaintiff did not consent or acquiesce to it.

41. Defendant CITY is responsible and liable for the acts of their employees, officers, agents, and/or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

42. As a direct and proximate cause of the assault and battery on Plaintiff by Defendant officers, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

43. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

44. The allegations set forth in paragraphs "1" through "43" inclusive are incorporated herein as if fully set forth.

45. Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS engaged in extreme and outrageous conduct throughout the course of the Subject Incident and Arrest and the assault and battery of Plaintiff.

46. Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS caused Plaintiff to fear for his safety during the course of the aforesaid extreme and outrageous conduct.

47. Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS knew, or should have known, that the extreme and outrageous conduct engaged in would result in injury to Plaintiff.

48. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.

49. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or disregard of a substantial probability of causing severe emotional distress to Plaintiff.

50. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress, which had a disabling effect.

51. Defendant CITY is responsible and liable for the acts of their employees, officers, agents, and / or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

52. As a direct and proximate cause of Defendants' infliction of emotional distress on Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

53. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION

54. The allegations set forth in paragraphs “1” through “53” inclusive are incorporated herein as if fully set forth.

55. Defendant CITY failed to exercise reasonable care in hiring, training, retaining and supervising its employees, officers, agents, and/or contractors, thereby breaching its duty to Plaintiff as well as to the public, to exercise reasonable care in the hiring, training, retaining, and supervising employees.

53. Defendant CITY was aware of and should have known of the propensity of Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS to commit injurious acts.

54. Defendant CITY was negligent in failing to properly train and supervise its employees, more specifically, Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS.

55. Defendant CITY is responsible and liable for the acts of their employees, officers, agents, and/or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

56. As a result of Defendants’ actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

57. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENCE / GROSS NEGLIGENCE

58. The allegations set forth in paragraphs “1” through “57” inclusive are incorporated herein as if fully set forth.

59. Defendants’ acts and/or omissions in causing the aforesaid assault and battery of Plaintiff, negligent hiring, training, supervision, and retention of its employees, officers, agents, and/or contractors, and negligent infliction of emotional distress were in breach of the duty of due care owed to Plaintiff.

60. Defendant City is responsible and liable for the acts of their employees, officers, agents, and/or contractors, which were done within the scope of their employment under the doctrine of *respondeat superior*.

61. As a direct and proximate cause of Defendants’ negligence, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff.

FEDERAL CLAIMS**AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
MUNICIPAL LIABILITY "MONELL" CLAIM**

62. The allegations set forth in paragraphs "1" through "61" inclusive are incorporated herein as if fully set forth.

63. Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS, individually and collectively, within the scope of their employment and authority and under color of state law, engaged in conduct that constituted customs, policies, procedures, rules or usages of the City, and the NYPD and which were in violation of the rights of Plaintiff as secured by the United States Constitution.

64. The aforesaid customs, policies, procedures, rules or usages included, but were not limited to: a pattern and practice of utilizing unnecessary and excessive force; failure to ensure that use of force by police officers is properly reported and investigated; failure to appropriately discipline employees, officers, agents, and/or contractors who utilize unnecessary and excessive force, as well as those who supervise such persons; and failure to intervene when employees, officers, agents, and/or contractors deprived and violated Plaintiff's well-established statutory and constitutional rights.

65. The aforesaid unlawful policies and practices in tolerating such misconduct resulted in the subject incident and injuries to Plaintiff rendering the City liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658 (1978) and 42 U.S.C. § 1983.

66. The aforesaid conduct was consistent with the institutionalized practices of the NYPD, which were known of and previously sanctioned by Defendant CITY.

67. Despite knowledge of the institutionalized practices of the NYPD, Defendant CITY took no effective actions to end or prevent such practices.

68. Defendant CITY had prior notice of the injurious actions and practices of Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS but took no effective actions to end or prevent the aforesaid defendants from committing such practices.

69. Defendant CITY had prior notice that Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, Directives and Departmental policy, other applicable laws, and federal and state statutory and constitutional protections, but took no effective actions to ensure that the aforesaid Defendants were provided with adequate or appropriate training.

70. Defendant CITY authorized, tolerated and ratified the misconduct of employees, officers, agents, and/or contractors, and of Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS, specifically, by failing to: discipline employees, officers and agents; take adequate precautions in screening, hiring, educating, informing, training, supervising, promoting, and retaining employees, officers, and agents; and failing to establish and maintain a meaningful system for responding to complaints of misconduct, all of which constitute deliberate indifference by Defendant CITY to Plaintiff's rights, as secured by the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

71. As a direct result of Defendants' acts and/or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day.

72. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant CITY liable to Plaintiff for compensatory and punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS PURSUANT TO 42 U.S.C. §1983
FOR VIOLATION OF PLAINTIFF'S
STATUTORY AND CONSTITUTIONAL RIGHTS

73. The allegations set forth in paragraphs "1" through "72" inclusive are incorporated herein as if fully set forth.

74. As a direct result of the acts, omissions, and policies of Defendant CITY, Defendant OFFICER DARMALINGUM, and the JOHN DOE OFFICERS, acting under color of state law caused Plaintiff, a citizen of the United States and resident of the State of New York, to be deprived of his rights, privileges, and immunities guaranteed under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution, and pursuant to 42 U.S.C. § 1983.

75. The above actions of Defendants resulted in Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from unreasonable search and seizure;
- b. Freedom from assault to his person;
- c. Freedom from battery to his person;
- d. Freedom from the use of unnecessary and excessive force against his person;
- e. Freedom from retaliation for protected speech;
- f. Freedom from deliberate indifference to his medical needs;

- g. Freedom from state created danger; and
- h. Freedom from loss of liberty.

76. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights and with deliberate indifference to his rights which are protected under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

77. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities under the laws of the State of New York to be free from assault and battery, intentional infliction of emotional distress, and other injuries.

78. As a direct and proximate cause of Defendants' deprivations and violations of Plaintiff's statutory and constitutional rights under 42 U.S.C. § 1983, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

79. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for compensatory and punitive damages, and for Plaintiff's attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER DEVIN DARMALINGUM, and “JOHN DOES 1-2”, PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdictional limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
May 26, 2017



Stephannie A. Miranda, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff
FREDO JEANCHARLES, JR.
26 Broadway, Suite 2100
New York, New York 10004
(212) 500-3273
File No.: FA-7079

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am an associate of Lebedin Kofman LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman LLP maintains its office.

Dated: New York, New York
May 26, 2017



Stephannie A. Miranda, Esq.